

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
June 22, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2021-01184556 Foster vs. MTGL, Inc.	The tentative ruling is to continue the hearing on Plaintiff Gary E. Foster's ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement to October 19, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date.

	There is no explanation for the change in the number of class members to 95, when the number was estimated to be 109 at the preliminary approval stage. The parties have not identified the number of aggrieved employees included in the settlement, and, if the number is different than 87 aggrieved employees, an explanation for the change must be provided. The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771(b), which states: “Notice of the judgment must be given to the class in the manner specified by the court.” The notice may be included with the checks that are mailed to the class members or posted on the administrator’s website. Plaintiff has not submitted his attorneys’ bills or a detailed hourly breakdown of his attorneys’ hours to support the court’s review of plaintiff’s attorneys’ fees request. Further, there is no information on the number of years of experience for timekeepers Diego Aviles, Vedang J. Patel, Bijan Mohseni, Robert Payaslan, and Nairi Shirinian to assess the reasonableness of their hourly rates. Plaintiff is required to provide sufficient information to support the court’s lodestar cross-check of the fee request. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount or \$330,000.00, which the court finds fair, adequate and reasonable for the settlement of this size. An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, and based on plaintiff’s contribution to the case. Counsel should propose a realistic Final Report Hearing date, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the class members. All supporting papers must be filed at least 16 days before the Final Report Hearing date.
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		Plaintiff has not shown that he served the LWDA with his moving papers. Plaintiff is ordered to give notice of the ruling to the LWDA, and to Defendant, to serve the LWDA with his original moving papers as well as any new papers filed for future hearings, and to file a proof of service showing such compliance.
2	30-2023-01334565 Duong vs. Mobilitie Holdings, LLC	Plaintiff Monique Duong's ("Plaintiff") Motion for Final Approval of Class Action Settlement is GRANTED IN PART. An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, and based on plaintiff's contribution to the case. The court also finds that an attorneys' fee award totaling \$106,740.00 or 30% of the Gross Settlement Amount, is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved. The court concludes that the \$355,800.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$106,740.00 to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the \$118,600.00 requested; • \$19,019.26 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Monique Duong as enhancement award, reduced from the \$7,500.00 requested; and • \$6,250.00 to CPT Group, Inc., the settlement administrator, as requested. The court notes that the gross settlement amount includes \$42,353.34 that was previously paid as a part of <i>Pick Up Stix</i> settlements. Thus, the total amount that will be payable to all class members, if they are paid the amount to which they are entitled pursuant to the judgment, is \$176,437.40.

		The Final Accounting hearing is set for March 22, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator must submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiff shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiff is ordered to give notice of this ruling.
3	JCCP 5194 Aaron Thomas Wage and Hour Cases	The tentative ruling is to continue Plaintiff Stephanie Navarro Reyes's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff failed to provide the court with a text-searchable settlement agreement in compliance with CRC 2.256(b)(3). Plaintiff's counsel states: "To effectuate the Settlement, the Parties agreed to file an amended complaint adding the PAGA claims." (Savoy Dec. ¶ 3.) However, no amended complaint has been filed with a PAGA claim for Plaintiff. Aggrieved employees are defined as "all non-exempt employees employed by Defendants in California at any time between November 5, 2018, through November 28, 2025" (Settlement ¶ 1.5) but the PAGA Period is defined as

		December 3, 2018 through November 28, 2025 (Settlement ¶ 1.32). These terms must be consistent. The motion fails to provide the class members' estimated high and low payments to be paid to class members and the estimated average payment to be paid to aggrieved employees. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. Plaintiff does not provide any information as to how attorneys' fees will be split between the two firms representing plaintiff and the class. Plaintiff must disclose the proposed split so that the court can approve separate attorneys' fees awards. The following corrections must be made to the class notice: • The case number is listed incorrectly on Page 1 of the class notice and on Page 8 (Section 6) of the class notice. The case number should be JCCP 5194. • Class members may object to the amount allocated to PAGA penalties. The second row, first column of Page 3 of the class notice should state: "Participating Class Members Can Object to the Class Settlement," and the phrase "but not the PAGA Settlement" should be removed. • On Page 5 of the notice, the phrase "Court Approved Deductions from Gross Settlement," should be
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		amended to state “Deductions from Gross Settlement Subject to Approval by the Court” since the court has not granted final approval of these deductions. • The Opt Out Form must explain that class members who are also aggrieved employees may not opt out of the PAGA portion of the settlement and still receive their portion of the PAGA penalties. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to provide notice of this ruling to the LWDA and Defendant.
4	30-2020-01131297 Villagomez vs. Marcos & Javiers, LLC	The tentative ruling is to continue Plaintiffs Andrea Martinez and Juana Maria Ramirez Angeles’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys’ fees

		request by amendment to the settlement agreement and the class notice, or Plaintiffs must provide documentation and support for any request higher than this percentage at the final approval stage. Plaintiffs do not provide any information as to how attorneys' fees will be split between the two firms representing plaintiffs. Plaintiff must disclose the proposed split so that the court can approve separate attorneys' fees awards. The Class and PAGA Periods are defined as ending on the date the court grants preliminary approval of this settlement. However, the escalator clause in Paragraph 4(F) of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendants will have to either rely on or take another look at its estimated number of class members and aggrieved employees or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than just an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice and have the class notice include the adjusted end date and not be sent to non-participants. The class notice must be corrected as follows: • On Page 2 of the class notice, the parenthetical “(“Defendants” is used herein as a placeholder)” should be amended to state: “(collectively, “Defendants”).” • On Page 3 of the notice, the phrase “Court Approved Deductions from Gross Settlement,” should be amended to state “Deductions from Gross Settlement Subject to Approval by the Court” since the court has not granted final approval of these deductions. • On Page 5 of the class notice, the definition of “Released Parties” must match the definition in Paragraph 3 of the settlement agreement. Plaintiffs shall provide notice of this ruling to the LWDA and Defendants.
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5	30-2024-01421727 Campuzano vs. Sepulveda Building Materials, Inc.	The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is CONTINUED to November 2, 2026 at 1:30 p.m.in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 days before the hearing and must address as necessary each of the below points. The parties must also provide redlined versions of any revised documents and revised settlement provisions. The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$800,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The court will not approve a settlement that permits defendant to shorten the Class Period and/or the PAGA Period. Option (b) in paragraph 7 of the settlement (permitting defendant to "roll[] back" the Class and PAGA Periods should be removed. 2. All settlement approvals require plaintiff to disclose whether any fee-sharing or referral agreements apply to the action. CRC, rule 3.769. Plaintiff has failed to do so. 3. The "Released Parties" provision (§ 1.40) is vague and overbroad to the extent it includes unidentified third parties including "subsidiaries, affiliates, joint venturers, and licensees" and "agents, and successors and assigns." 4. The "Release by Participating Class Members" (§ 5.1) is vague and overbroad to the extent it includes "debts, liabilities, demands, obligations, penalties, guarantees, costs, expenses, attorney's fees, damages." 5. The "Release by Aggrieved Employees" does not provide an effective date. § 5.2.

		6. The court prefers a 60-day period for class members to opt-out, object or submit any disputes. ¶¶ 6.12.1, 6.12.2, 6.12.3, 6.4.1 unless there are special circumstances here that warrant a shorter period? In addition, the “Response Deadline” in paragraph 1.42 should be 60 days and include disputes. 7. While the court will not determine the amount of attorneys’ fees to be awarded until final approval, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount absent unique circumstances. At final approval, plaintiff’s counsel should address whether any such unique circumstances exist here. 8. While the court will not determine the amount of any enhancement award to be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. At final approval, plaintiff should address whether any such unique circumstances exist here. Plaintiff should also provide his anticipated total compensation to be received (including for any individual claims and excluding any enhancement payment). <u>As to the notice:</u> 9. The notice should be revised consistent with the above. ROA 59 Ex. 1(A). 10. A service award is not intended to be compensation for a “General Release.” § 3 bullet. 11. Include the PAGA penalty distribution percentages. § 3 bullet. 12. Include the dollar amount of estimated attorneys’ fees. § 3 bullet. 13. Disclose the proposed installment plan, why it is necessary, and when payments will be sent. § 3. 14. The same issues above pertain to the definitions of “Released Parties” and “Released Class Claims.” § 4. 15. Section 11 should inform the class and aggrieved employees the final judgment will be posted to the
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		website and the case documents can be accessed for at least 180 days following its entry by the court. <u>As to the proposed order:</u> 16. The proposed order should be revised consistent with the above. ROA 53. 17. The document footer should mirror the document title, i.e., “and PAGA Settlement.” 18. Paragraph 3 appears to provide that \$50,000 will be paid upon entry of the order, which is inconsistent with the settlement. If that is not the intent, the paragraph should be deleted. 19. Include the terms of the installment plan. ¶ 6. 20. The same issues above pertain to the definitions of “Released Parties” and “Released Class Claims.” ¶ 6. 21. Remove plaintiff’s release. ¶¶ 6(b), (i). 22. “Action” is misspelled. ¶ 10. 23. The same issues above apply to the Response Deadline.” ¶ 14. 24. Propose a date for a final approval hearing. ¶ 14. 25. Delete paragraph 17. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any revised settlement documents and file a proof of service.
6	30-2024-01423919 McCain vs. Infinitie Electronics International, Inc.	The hearing on plaintiff’s motion for preliminary approval of a class action and PAGA settlement is CONTINUED to October 26, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 days before the hearing and must address as necessary each of the below points. The parties must also provide redlined versions of any revised documents and revised settlement provisions.

		The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$500,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The court will not approve a settlement with uncertain end dates for Class or PAGA Periods. Per an express obligation of the settlement, "Defendant agree[d] to inform Plaintiff which option [as to the escalator] it intends to exercise before the filing of the Motion for Preliminary Approval." ¶ 9.1. 2. All settlement approvals require plaintiff to disclose whether any fee-sharing or referral agreements apply to the action. CRC, Rule 3.769. 3. Plaintiff must provide the estimated high and low individual class and PAGA awards, which should be available once the Class and PAGA Period end dates are certain. 4. The "Response Deadline" should include disputes. ¶ 1.46. 5. It is for the court, not the administrator, to make any "final" determinations. ¶¶ 8.5(b), 8.8(c). 6. The "Released Parties" provision (¶ 1.44) is vague and overbroad to the extent it includes unidentified third parties, including "attorneys, insurers, predecessors, successors, assigns, parents, affiliates and subsidiaries." 7. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. At final approval, plaintiff's counsel should address whether any such unique circumstances exist here. 8. While the court will not determine the amount of any enhancement award to be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. At final approval, plaintiff should
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		address whether any such unique circumstances exist here. Plaintiff should also provide his anticipated total compensation to be received (including for any individual claims and excluding any enhancement payment). <u>As to the notice:</u> 9. The notice should be revised consistent with the above. ROA 70 Ex. 1(A). 10. Define “Action” as “class action and PAGA lawsuit.” At 1. 11. The same issue above applies to the PAGA and Class Period end dates. 12. Correct the court’s address. At 3. 13. Define “Settlement” as “proposed class action and PAGA settlement.” § 1. 14. Change “a good deal” to “fair.” § 1. 15. Delete the following paragraph in its entirety: “Defendant denies that it has done anything wrong and disputes all the claims in the Action. For example, Defendant contends that Plaintiff and the Class Members were, at all times, properly compensated for wages and reimbursed for required expenses under California law; that Plaintiff and the Class Members were provided with meal and rest periods in compliance with California law; that Defendant did not fail to pay to Plaintiff or any Class Members any wages allegedly due during employment and at the time of their termination; that Defendant complied with California wage statement and record requirements; that Defendant did not violate California Business and Professions Code section 17200 et seq.; that Defendant is not liable for any of the penalties sought or that could have been sought in the Action; and that this Action cannot be maintained as a class or representative action.” § 2. 16. The same issue above applies to the definition of “Released Parties” § 4.
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		17. The submission of documents supporting a dispute should be revised to reflect “with any supporting documents, if available, to the Administrator...” § 5. 18. Inform class members the court will make the ultimate determination of the validity of a request for exclusion. § 7. 19. Correct the court’s address. § 9. 20. Inform the class and aggrieved employees the final judgment will be posted to the website and the documents can be accessed for at least 180 days following its entry by the court. <u>As to the proposed order:</u> 21. The proposed order should be revised consistent with the above. ROA 63. 22. The same issue as above applies to the Class Period and PAGA Period end dates. ¶¶ 5, 6. 23. The same issue as above applies to the definition of “Released Parties.” ¶ 7(a). 24. Remove plaintiff’s release. ¶¶ 7(b), (1). 25. Include the definitions of “Released PAGA Claims” and “Released PAGA Claims.” ¶¶ 7(c), (d). 26. A service payment is not intended to compensate plaintiff for a general release. ¶ 10. 27. Identify that the attached notice includes a translation. ¶ 14. 28. Propose a date for a final approval hearing. ¶ 16. 29. Delete paragraph 18. 30. Include a paragraph providing for the court’s continuing jurisdiction. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any revised settlement documents and file a proof of service.
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7	30-2024-01442772 Enright vs. KA Preschool of Huntington Beach	The tentative ruling is to continue Plaintiffs Christin Enright and Aaron Le's (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiffs must provide documentation and support for any request higher than this percentage at the final approval stage. The papers submitted in support of this preliminary approval motion are inconsistent as to the exact amount requested for enhancement awards for each named plaintiff. The declarations from Plaintiffs request \$10,000.00 for Enright and \$5,000.00 for Le, but the settlement agreement and class notice only request \$10,000.00 and it is unclear if that amount is for each named Plaintiff or total for both. The documents must be amended to be consistent. The motion fails to provide the class members' estimated high and low payments. The average payment must be provided for preliminary approval, but, if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 15% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required.
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		Paragraph 7.5.2 of the settlement agreement states that the administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any unresolved dispute regarding the authenticity of an opt-out request. Paragraphs 7.6 and 7.8.4 of the settlement agreement states that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. The following corrections must be made to the class notice: • Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. • The enhancement award requested for each named plaintiff must be accurately described and clarified in the class notice in Section 7 on Page 4. • The Class Period described on Pages 1 and 2 of the class notice must match the class period defined in the settlement agreement, which ends on the date the court grants preliminary approval of this settlement, not December 31, 2025. • Every Defendant should be listed in the description of the lawsuit at the top of Page 3 of the class notice. • The releases on Page 6 of the class notice should match the releases described in the settlement agreement. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendants.
8	30-2024-01396627 Cayon vs. Zions Bancorporation, N.A.	The hearing on plaintiff's motion for approval is CONTINUED to October 25, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 court days before the hearing and must address as necessary each of the below points. The parties must provide redlined copies for all revised documents as well as revised settlement provisions.

The court has reviewed and considered the papers filed in support of plaintiffs' motion for approval of a \$464,552 PAGA settlement. The court has the following questions and comments:

As to the Settlement:

1. Plaintiffs should provide their anticipated total compensation to be received (including for any individual claims released by individual settlement or otherwise, and excluding any enhancement payment).
2. Counsel states defendant elected to end the Settlement Period on 12-05-2025, which corresponds to 44,344 pay periods. ROA 67 ¶ 13. The "Settlement Period" (¶ 12) needs to be amended to reflect this. Additionally, the language permitting any change to the Settlement Period must be removed. ¶ 14 (c) ("In the alternative, Defendant may elect to change the end date of the Settlement Period to correspond to the last date on which the total number of Pay Periods was not in excess of Forty-Four Thousand Three Hundred Forty-Four (44,344), which is a 5% increase."). The escalator shall be operative in the event the actual number of pay periods during the Settlement Period exceeds 44,344 by any amount.
3. What are the amounts of the estimated high and low individual PAGA awards?
4. The administration costs must be limited by a not to exceed amount; a provision providing for an "estimated" amount will not be approved. ¶ 17.
5. The release (¶ 23) is problematic in numerous respects.
 - a. The court will not approve a release that is effective prior to full funding of the settlement. ¶ 23 (purporting to make release effective upon "entry of the settlement approval Order and Judgment").
 - b. "Settled Claims" is a defined term (¶ 11); a separate, overlapping definition "Released

		PAGA Claims” should be removed. ¶ 23. c. The term “PAGA Period” is not defined in the settlement and should be removed. ¶ 23. d. The following is unnecessary, vague, and or confusing and should be removed from paragraph 23: “the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged during the PAGA Period, based on the facts stated in the PAGA Complaint and the PAGA Notices filed by Plaintiffs including claims for (1) failure to pay overtime wages; (2) failure to pay minimum wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) failure to provide accurate wage statements; and (6) claims for statutory penalties for violation of California Labor Code sections 201-204, 226, 226.7, 510, 512, 516, 558, 1174, 1194, 1198, and 2698, et seq., and California Business and Professions Code section 17200 et seq As a result of this release, Plaintiff, the State of California, and the Aggrieved Employees will not be able to bring a claim or seek civil penalties based on the Settled Claims that took place during the PAGA Period.” 6. The “Released Parties” provision (¶ 9) is overbroad and will not be approved to the extent it includes vague/unidentified third parties including “past, present, and future direct or indirect,” “past, present, and future,” “attorneys, insurers, reinsurers, and any individual or entity which could be jointly liable with Defendant.” 7. The injunction (¶ 24) should be removed in its entirety. Res judicata is sufficient. 8. Plaintiffs’ counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 9. Plaintiff’s counsel must provide a lodestar analysis, including copies of time records, billing statements,
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		or other records contemporaneously documenting the work performed and time spent detailing the specific tasks performed on the case, the time spent on each task, and the individual(s) who performed the task. 10. Plaintiffs' counsel seeks attorneys' fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here. 11. Plaintiffs' counsel seeks litigation costs in the amount of \$16,948.77. Anticipated costs (\$88.19) are not awarded and should be removed. Additionally, nonrecoverable items such as postage (\$48.99), mailing (\$25.60) and copying (\$15.75) charges should be removed. A paid invoice substantiating the mediation fee request (\$15,000) must be provided. 12. The court is unlikely to approve an enhancement award in excess of \$5,000 per plaintiff absent unique circumstances. Plaintiffs should address in the supplemental filing whether any such unique circumstances exist here. 13. All parties should state, in declarations filed with the court, whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the proposed settlement on that case. <u>As to the Notice:</u> 14. The notice should be revised consistent with the above. ROA 67 Ex. 1(A). 15. Insert "aggrieved" before "employees" in the last sentence of ¶ 2.
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		16. Is there an intended distinction by referring only to “representative” PAGA claims? ¶ 3. 17. Identify the statutory percentage “portion” for both the LWDA and aggrieved employees. ¶ 3. 18. Include the proposed disbursements. 19. Inform aggrieved employees they may not opt out of the settlement. ¶ 5. 20. Does the notice need to be prepared in languages other than English? 21. How will aggrieved employees be notified that judgement has been entered? <u>As to the Proposed Order:</u> 22. The proposed order should be revised consistent with the above. ROA 61. 23. Change the document title to mirror the document footer. 24. Remove the attorney information from the caption page. 25. The operative settlement/amendments, and the notice should be attached as exhibits. At 1 n.1, ¶ 5. 26. Attorney costs are not awarded on an “up to” basis. ¶ 10. 27. Change “directs” to “orders” and add “and the settlement administrator” after “parties” in paragraph 3. 28. The same issues above apply to the release and the released parties. ¶ 14. 29. Add that plaintiff must also file proof the judgment was served on the LWDA. ¶ 15.
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		30. Propose a date for a final accounting hearing. ¶ 16. Include a provision that all supporting papers shall be filed no later than 16 days prior to the hearing. <i>Id.</i> 31. Include a provision for the court’s continuing jurisdiction. 32. Indicate how aggrieved employees will be notified that judgment has been entered. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
9	30-2023-01317634 Lopez vs. Nutrition Corp., Inc.	Counsel Jose Garay of Jose Garay, APLC’s (“Counsel”) Motion to Be Relieved as Counsel for Plaintiff Oscar Garcia Lopez (“Plaintiff”) is GRANTED ON THE CONDITION THAT a proposed order is provided to the court within five (5) days of this ruling. (CCP § 284(2).) Counsel has substantially complied with the requirements of CRC Rule 3.1362. However, counsel did not file a proof of service showing service on their client and on Defendant of a proposed order (Judicial Counsel Form MC-053), as required by Cal. Rules of Court, Rule 3.1362(d), and did not lodge a proposed order with the court with their moving papers, as required by Cal. Rules of Court, Rule 3.1362(e). IT IS ORDERED THAT Notice of Entry of Order and Proof of Service must be filed by Counsel. Counsel remains counsel for Plaintiff until Proof of Service upon Plaintiff is filed. The court sets a status conference for August 19, 2026 at 9:00 a.m. to determine whether Plaintiff intends to retain new counsel in order to proceed with this action, which includes a PAGA claim. “PAGA authorizes ‘an aggrieved employee,’ acting as a proxy or agent of the state Labor and Workforce Development Agency (LWDA), to bring a civil action against an employer . . .” (<i>Adolph v. Uber Techs., Inc.</i> (2023) 14 Cal. 5th 1104, 1113.) Accordingly, Plaintiff is an agent of the LWDA in this PAGA action, but the LWDA’s interests in a PAGA action must be represented by licensed counsel.

		“[P]ersons may represent their own interests in legal proceedings but may not ‘practice law [for another] in this State unless [they are] active member[s] of the state bar.” (<i>Drake v. Superior Ct.</i> (1994) 21 Cal. App. 4th 1826, 1830.) Thus, Plaintiff cannot proceed in a PAGA action in pro per. Counsel is ordered to give notice of this ruling.
10	30-2019-01108860 Long Beach Memorial Medical Center vs. Kaiser Foundation Health Plan, Inc.	Defendant and Cross-Complainant Kaiser Foundation Health Plan, Inc.’s (“Kaiser”) Motion to Seal Confidential Portions of Trial Transcript and Confidential Trial Exhibits is GRANTED. “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, Rule 2.550(c).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, Rule 2.550(d).) “[T]rial courts may redact or seal particular documents to protect private information concerning an overriding privacy interest.” (<i>In re M.T.</i> (2024) 106 Cal. App. 5th 322, 336.) “[I]t is appropriate to seal certain records when those particular records contain highly sensitive . . . personal information about individuals,” including their medical information. (<i>Id.</i>) Overriding interests may also include a substantial probability that movant’s business, competitiveness and privacy rights will be adversely affected if the record is not sealed. (<i>See, e.g., McGuan v. Endovascular Techs., Inc.</i> (2010) 182 Cal. App. 4th 974, 988 [affirming order granting motion to seal documents containing trade secrets]; <i>Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Superior Court</i> (2006) 137 Cal. App. 4th 579, 594 [“Although corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists.”]; <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal. App. 4th 1273, 1286 [noting that sealing is appropriate where “information involves

		confidential matters relating to the business operations of defendant” and “public revelation of these matters would interfere with its ability to effectively compete in the marketplace”].) Here, Kaiser seeks to seal: • 8 trial exhibits containing Kaiser’s paid claims data (including patient personal health information) • 36 trial exhibits containing Kaiser’s letters of agreement (“LOAs”) (6 with nonparty facilities and 30 with MemorialCare facilities) • 21 trial exhibits containing Kaiser’s contracts with non-party hospitals (and related amendments) • Portions of trial transcripts referencing these exhibits (Pimstone Dec., Exs. 1A-1L.) Kaiser has established the criteria set forth in CRC Rule 2.550(d). The court expressly finds that the facts establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. From presiding at the trial, the court is aware that the subject documents contain confidential, sensitive, competitive business information as well as confidential patient personal health information. The issue at trial was the fair reimbursement rate for Kaiser patients treated by defendants. To address this issue it was necessary to explore a range of reimbursement rates paid to other providers and examples of rates paid on particular patient claims. This is the type of information which might, and in this case does, generate the overriding interest necessary to support a sealing order. Plaintiffs opposed this motion arguing that Kaiser failed to preserve the confidentiality of the subject materials and waived its right to seal the subject materials. “Waiver is the intentional relinquishment of a known right after knowledge of the facts.” (<i>Harper v. Kaiser Cement Corp.</i> (1983) 144 Cal. App. 3d 616, 619.) The burden is on the party claiming waiver “to prove it by clear and convincing evidence that does not leave the matter to speculation, and ‘doubtful
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		cases will be decided against a waiver.” (Id.) Plaintiffs have not met this burden. Plaintiffs argue that the court in <i>Pomona Valley Hospital Medical Center v. Kaiser Foundation Health Plan, Inc.</i> (2026) 119 Cal.App.5th 43, denied Kaiser’s motion to seal similar information. However, that court denied the motion to seal based on the following facts: “The court notes that the reporter’s transcript was filed in this court on July 30, 2024. Kaiser took no action around the time of filing, or for more than a year and a half afterward, to seek sealing of the transcript, and only did so after filing of the opinion. Further, the parties’ publicly-filed briefs cited extensively to portions of the reporter’s transcript that Kaiser now asserts should be sealed. Accordingly, the court concludes that any claim that Kaiser may have had that the reporter’s transcript should be sealed has been waived.” (Hayes-Kibreab Dec., Ex. B.) Plaintiffs also rely on <i>Savaglio v. Wal-Mart Stores, Inc.</i> (2007) 149 Cal. App. 4th 588, 598, where the party waived its right to seal records that were publicly filed in appellate court proceedings and were never properly filed under seal at the trial court level. (Id. at 600 [“Wal-Mart could not reasonably think that the trial court had sealed the documents submitted with the writ petitions, because Wal-Mart had not moved for an order sealing the record; had not submitted points and authorities and a declaration justifying sealing; and there was no court order granting the nonexistent motion.”].) The facts here are clearly distinguishable. In this action, Kaiser filed the relevant exhibits “conditionally under seal” and timely filed a motion to seal during trial, but the court declined to address the question of sealing materials until after trial. Kaiser notes that, during trial, when testimony was elicited as to the materials, both Kaiser and Plaintiffs cleared the courtroom of persons not within the scope of the protective order. Kaiser then filed this motion a few months after trial concluded after reviewing the exhibits and court transcripts. Such conduct does not evince a relinquishment of rights. The court finds that under these facts, Kaiser did not waive its right to seal the subject material and has demonstrated an overriding interest warranting sealing of these materials. Kaiser is ordered to give notice of this ruling.
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11	30-2020-01145279 Ledesma vs. Shrin, LLC	Plaintiff Sofia Ledesma’s (“Plaintiff”) Motion for Terminating Sanctions is DENIED. Sanctions are warranted when there are “[m]isuses of the discovery process.” (CCP § 2023.010.) Sanctions include monetary sanctions, issue sanctions, evidentiary sanctions, terminating sanctions and contempt sanctions. (CCP § 2023.010(a)-(e).) “[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal. App. 4th 486, 496.) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal. App. 4th 262, 279–80.) Terminating sanctions are warranted when there is evidence that a plaintiff “failed to comply with discovery orders to produce . . . documents on two separate occasions, and that the failure to comply, even if not deliberate, evinced a disregard for the discovery process,” “repeatedly presented false, misleading, or evasive discovery responses,” “presented false or evasive deposition testimony,” and “engaged in spoliation . . . despite probable civil litigation[.]” (<i>Dep’t of Forestry & Fire Prot. v. Howell</i> (2017) 18 Cal. App. 5th 154, 198 [affirming trial court’s imposition of terminating sanctions].) Terminating sanctions are justified when a party has “engaged in egregious and deliberate misconduct that ma[ke] any other sanction inadequate to protect the judicial process and to ensure a fair trial.” (<i>Id.</i>) Here, Shrin has responded to some of Plaintiff’s Request for Production with promises of compliance, but has only produced some of the documents for only a portion of the relevant time period and only for some of the class members. Shrin fails to provide substantial justification for its delay in producing the remaining requested documents.

		The court finds that these facts do not arise to the type of egregious discovery misuse that warrants terminating sanctions. Thus, Plaintiff's Motion for Terminating Sanctions is denied. However, the requested documents are clearly relevant to the claims in this action and Shrin has failed to act diligently in obtaining the requested documents. Plaintiffs' Alternative Motion to Compel Defendants' Further Responses to Request for Production of Documents, Set 3, and Request for Monetary Sanctions is GRANTED IN PART. IT IS ORDERED THAT within fourteen (14) days of this ruling, Defendant Shrin, LLC ("Shrin") shall provide all responsive documents to Plaintiffs' Requests for Production of Documents ("RFP"), Set 3, as follows: (1) RFP Nos. 63-65: Any policies or documents from Paycom concerning its calculation of overtime pay for Shrin employees, or a verified statement that Paycom has refused to produce such documents. (2) RFP Nos. 71-72: Any policies or documents from Paycom concerning reflecting modifications, updates, or changes to wage statements it prepared for Shrin employees, or a verified statement that Paycom has refused to produce such documents. (3) RFP Nos. 78-80: All wage statements, time records, payroll records, punch cards, work period computer cards & printouts, work schedules, pay stubs, and itemized statements for all Class Members during the relevant time period. This supplemental response must comply with the Code of Civil Procedure, including the requirement that "[a]ny documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond." (CCP § 2031.280(a).) This includes the six bankers' boxes of documents that Shrin claims were produced to Plaintiff in a different case. The Alternative Motion to Compel is DENIED IN PART as to RFP Nos. 73-74, based on Shrin's representation that it does not have a piece rate policy for compensating its employees and therefore cannot produce responsive documents as to such
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		a policy. To the extent Plaintiff seeks discovery regarding a “task value” policy, Plaintiff must request such discovery. Plaintiff also seeks an award of monetary sanctions against Shrin in the amount of \$12,920.00 for attorney’s fees and \$60.00 for costs pursuant to CCP §§ 2031.310(h) and 2023.030. As Plaintiff’s motion is only granted in part, and as only some of the requests for production are still at issue, the court grants in part Plaintiff’s request for monetary sanctions. IT IS ORDERED THAT monetary sanctions in the amount of \$3,000.00 is payable to Plaintiff by Shrin and its counsel, jointly and severally, within sixty (60) days of this ruling. Plaintiff is ordered to give notice of this ruling.
12	30-2023-01321351 Danforth vs. Placentia-Linda Hospital, Inc.	Off Calendar
13	30-2025-01513896 Vaughn vs. American Woodmark Corporation, a Virginia corporation	Off Calendar